

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #05	CCRB Case #: 201608300	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/28/2016 4:45 PM	Location of Incident: Intersection of 31st Street and Astoria Blvd. South	18 Mo. SOL 3/28/2018	Precinct: 114
Date/Time CV Reported Wed, 09/28/2016 6:01 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 09/28/2016 6:01 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicholas Loccisano	16251	960816	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Francesco Oddo	29584	953192	114 PCT
2. POM Brian Bayley	14042	960219	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Loccisano	Discourtesy: Police Officer Nicholas Loccisano spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On September 28, 2016, § 87(2)(b) filed this complaint with the CCRB via the call processing system. On October 3, 2016, § 87(2)(b) was interviewed at the CCRB.

On September 28, 2016, at approximately 4:45 p.m., § 87(2)(b) was stopped at a red traffic light at the intersection of 31st Street and Astoria Boulevard South, in Queens, in his vehicle. § 87(2)(b)'s vehicle was behind a white car and a black Honda Civic. All three cars made a left turn at the intersection. § 87(2)(b) observed three uniformed officers, identified by the investigation as PO Francesco Oddo, PO Brian Bayley, and PO Nicholas Loccisano, each of the 114th Precinct, on foot at a checkpoint. PO Oddo motioned for the cars to pull over, and § 87(2)(b) pulled over behind the white car. PO Loccisano approached § 87(2)(b)'s car and informed § 87(2)(b) that he made an illegal turn. § 87(2)(b) explained that he did not see the traffic sign. PO Loccisano returned to his RMP. When PO Loccisano returned to § 87(2)(b)'s car, he handed him a VTL summons (Board Review 01). § 87(2)(b) asked if the driver of the Honda Civic got a ticket and PO Loccisano said it was not his call. § 87(2)(b) and PO Loccisano had a discussion about why § 87(2)(b) was issued a summons. When § 87(2)(b) told PO Loccisano that he would go to the precinct stationhouse and make a report, § 87(2)(b) alleged that PO Loccisano replied, "Do what the fuck you want, I'll see you around" (**Allegation A**).

§ 87(2)(b) was not arrested. There is no video footage of the incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation over the phone but opted for an investigation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)]
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- A Notice of Claim request was submitted on October 20, 2016, in regards to the incident. As of October 24, 2016, there were negative results for any notice of claim filed by § 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b)

- PO Loccisano has been a member of the NYPD for ten months and this is the first CCRB allegation pleaded against him.

Allegation A - Discourtesy: Police Officer Nicholas Loccisano spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) was stopped at a red traffic light at the intersection of 31st Street and Astoria Boulevard South, in Queens, in his vehicle, a black, X6 M series BMW. § 87(2)(b)'s vehicle was behind a white car and a black Honda Civic. § 87(2)(b) described the drivers of the white car and the Honda Civic as a white female and a white male, respectively. All three cars made a left turn at the intersection. PO Loccisano approached § 87(2)(b)'s car and informed § 87(2)(b) that he made an illegal turn. § 87(2)(b) explained that he did not see the traffic sign. PO Loccisano returned to his RMP and so did PO Bayley. The Honda Civic left approximately seven to eight minutes after § 87(2)(b) pulled over. When PO Loccisano returned to § 87(2)(b)'s car, he approached the driver's side and handed him a VTL summons (Board Review 01). PO Bayley approached the passenger's side of § 87(2)(b)'s car and returned § 87(2)(b)'s license and insurance information. PO Loccisano approached the driver's side of § 87(2)(b)'s car and handed him a summons. § 87(2)(b) asked if the driver of the Honda Civic got a ticket and PO Loccisano said it was not his call. § 87(2)(b) told PO Loccisano that he believed he got the summons because he is Hispanic. PO Loccisano told § 87(2)(b) it had nothing to do with race. § 87(2)(b) told PO Loccisano that he would go to the precinct stationhouse and make a report. Initially, during the interview, § 87(2)(b) said PO Loccisano stated "Do what you want, I'll see you around" verbatim. However, later on during the interview when § 87(2)(b) was asked if any officers cursed or used any profanity, § 87(2)(b) amended his statement and said PO Loccisano said, "Do what the fuck you want, I'll see you around." According to § 87(2)(b) neither of the other officers were nearby when PO Loccisano made this statement, PO Loccisano did not use any other curse words or profanity during the incident, and did not make any racial remarks (Board Review 03). In § 87(2)(b)'s phone statement, he alleged PO Loccisano told him, "Listen, I don't got time for your bullshit," and that he'd see § 87(2)(b) around again (Board Review 06). When § 87(2)(b) told him that he'd file a complaint, PO Loccisano replied, "Do what the fuck you want."

According to PO Loccisano, on the date of the incident, PO Oddo, PO Bayley, and PO Loccisano were on foot doing directed traffic stops at the intersection of 31st Street and Astoria Boulevard. At this intersection, drivers were not allowed to make left turns Monday through Friday, from 4:00 PM to 7:00 PM and three cars in a row were pulled over for making illegal left turns. Each officer took a car, and PO Loccisano got § 87(2)(b)'s car. PO Loccisano asked for § 87(2)(b)'s license, registration, and insurance. § 87(2)(b) immediately complied. PO Loccisano told § 87(2)(b) there were two signs, informed him that he was not allowed to make a left turn Monday through Friday, from 4:00 PM to 7:00 PM, and asked him if there was any reason why he made one. § 87(2)(b) explained that he followed the other cars. PO Loccisano told § 87(2)(b) to sit tight and walked to his RMP. When PO Loccisano returned to the driver's side of § 87(2)(b)'s car, he issued him a summons. PO Loccisano did not recall where PO Oddo and PO Bayley were at the time he handed § 87(2)(b) a summons and could not approximate his distance from them. PO Loccisano described § 87(2)(b)'s demeanor as displeased once he was issued the summons. § 87(2)(b) said things such as: it was not fair, it was profiling, this is fucking bullshit, PO Loccisano's partner let the white guy go, and it's because I'm Spanish. PO Bayley approached § 87(2)(b)'s car to see if everything was

okay, but did not say anything to § 87(2)(b) PO Loccisano then walked away and returned to his RMP. PO Loccisano did not recall PO Oddo approaching § 87(2)(b)'s car or PO Oddo speaking to § 87(2)(b) at any point during the incident. PO Loccisano stated he did not say, "Do what the fuck you want, I'll see you around," did not use the word, "fuck," and did not use any profanity during his conversation with § 87(2)(b) (Board Review 04).

According to PO Bayley, PO Bayley and PO Loccisano were on a traffic island, on foot near a bus stop, doing traffic stops at the intersection of 31st Street and Astoria Boulevard. PO Bayley believed PO Oddo was in their RMP at the time, but could not be certain. The RMP was parked on the traffic island. PO Bayley estimated that PO Loccisano was two car lengths away from him as they handled their respective car stops. PO Bayley did not notice anything regarding PO Loccisano as he dealt with his car. When PO Bayley finished with the driver of his car, he walked over to PO Loccisano and saw a BMW X5 pull off. Nothing in particular caught PO Bayley's attention to make him walk over to PO Loccisano; he walked over because he was finished with his car stop. PO Bayley only observed that the driver of the BMW was a Hispanic male. PO Loccisano did not discuss anything that occurred during his car stop; he just asked PO Bayley if wrote a summons for the car he pulled over. PO Bayley did not hear PO Loccisano say, "Do what the fuck you want, I'll see you around," use the word, "fuck," or hear PO Loccisano use any curse words during the incident (Board Review 05).

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: 5

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date